The
AREA PLAN COMMISSION
of Tippecanoe County

Executive Committee

Notice of Public Hearing

Date: *Thursday*, January 2, 2020
Time: 4:30 PM
Place: Tippecanoe County Office Building
Tippecanoe Room
20 North Third Street
Lafayette, IN 47901

AGENDA

I. APPROVAL OF MINUTES

Documents:

EXEC 12.04.2019.PDF

II. NEW BUSINESS

A. **FINAL DETAILED PLANS**

1. **RESOLUTION PD-20-01: PURDUE RESEARCH FOUNDATION (PROVENANCE PD - PHASE 1 & 2 CONSTRUCTION PLANS)(Z-2766):**

Petitioner is requesting final detailed plan approval of Phase 1 & 2 Construction Plans for the Provenance Planned Development, a 90 acre, multi-phase, multi-lot, mixed-use neighborhood located on the south side of State Street between its Airport Road intersection to the east and its intersection with US 231/52 on the west, in West Lafayette, Wabash 24 (S 1/2) 23-5.

Documents:

PROVENANCE FDP RESOLUTION PD20-01.PDF

III. PUBLIC HEARING

IV. APPROVAL OF THE JANUARY APC PUBLIC HEARING AGENDA

Documents:

2020-1 APC AGENDA.PDF

V. APPROVAL OF THE JANUARY ABZA PUBLIC HEARING AGENDA

Documents:

01222020 AZBA AGENDA.PDF

VI. OTHER BUSINESS

VII. ADJOURNMENT

In accordance with the requirements of Title II of the Americans with Disabilities Act of 1990 ("ADA"), the Area Plan Commission of Tippecanoe County will not discriminate against qualified individuals with disabilities on the basis of disability in its services, programs, or activities. For more information visit www.tippecanoe.in.gov/ada

AREA PLAN COMMISSION OF TIPPECANOE COUNTY
EXECUTIVE COMMITTEE
MINUTES OF A PUBLIC HEARING

DATE..... December 4, 2019
TIME..... 4:30 P.M.
PLACE.....CO. OFFICE BLDG.
20 N. 3rd STREET
LAFAYETTE, IN 47901

MEMBERS PRESENT	**MEMBERS ABSENT**	**STAFF PRESENT**
Jackson Bogan	Tom Murtagh	Sallie Fahey
Greg Jones	Carl Griffin	Ryan O'Gara
Jerry Reynolds		Kathy Lind
Gary Schroeder		Chyna Lynch
Larry Leverenz		Zach Williams

Vice President Jackson Bogan called the meeting to order.

I. **APPROVAL OF MINUTES**

Gary Schroeder moved to approve the minutes from the November 6, 2019 Executive Committee public hearing as submitted. Greg Jones seconded, and the motion carried by voice vote.

II. **NEW BUSINESS**

FINAL DETAILED PLANS

RESOLUTION PD 19-03: MORRIS RENTALS, LLC (443 Vine Street PD) Z-2771:
Final Detailed Plans for the 443 Vine Street Planned Development. The approved preliminary plans allow for the expansion of an existing two-story duplex into a multi-family building containing a total of four units with 12 bedrooms and a 5-space detached garage in the New Chauncey Neighborhood's Local Historic District. The property is located at 443 Vine Street, West Lafayette, Wabash 19 (NW) 23-4**.**

Gary Schroeder moved to hear and approve **RESOLUTION PD 19-03: MORRIS RENTALS, LLC (443 Vine Street PD) Z-2771.** Greg Jones seconded.

Ryan O'Gara presented the construction plans and final plat. He said this project is located in the New Chauncey Neighborhood. This site was rezoned in September 2019. The proposal is to demolish a portion of the existing house and add on to create a total of four units. This site is in the local historic district which subjected it to scrutiny during the PD process. The Final Detailed Plans contains the construction plans and the final plat. Bonding has been requested but has not yet been received. Petitioner has thirty days from this approval to do so. Staff is recommending approval.

Marianne Mitten Owen, 300 Main Street, Lafayette, IN 47901, representative for petitioner, respectfully asked for approval. She said petitioner was present to answer any questions.

The Committee voted 5 yes to 0 no to approve **RESOLUTION PD 19-03: MORRIS RENTALS, LLC (443 Vine Street PD) Z-2771.**

Sallie Fahey said at the December APC meeting, we will be hearing the Comprehensive Plan review for a new Dayton/Tippecanoe County economic development area and TIF. This will be similar to what was heard last month for Battle Ground. This will be for the area near I-65 in the Town of Dayton extending north into unincorporated Tippecanoe County.

III. PUBLIC HEARING

None.

IV. APPROVAL OF THE DECEMBER APC AGENDA

Gary Schroeder moved that the following subdivision petition be place on the December 18, 2019 Area Plan Commission Public Hearing agenda:

S-4883 Westbaker Industrial Subdivision (major-preliminary).

Greg Jones seconded and the motion carried by voice vote.

Gary Schroeder moved that the following rezoning petition be placed on the December 18, 2019 Area Plan Commission public hearing agenda:

Z-2779 Indiana Beta of Sigma Alpha Epsilon House Corp. (R1 to R1U).

Greg Jones seconded, and the motion carried by voice vote.

V. REVIEW AND APPROVAL OF THE NOVEMBER BUDGET REPORT

Sallie Fahey said with the end of the year, we are making purchases to get us set up for next year. There were some significant purchases this month. Under expenditures this month, $1,984 was used for general office supplies for what is needed for next year. For printing and signs, that expenditure was for two sets of case signs, one of which is for Lafayette rezone signs. This is an expense that breaks even; the price that the signs are sold to the petitioner is the price paid for the signs. We are paying close attention to this because next year, the signs could become more expensive than what we charge for them, so we may need to increase the fee to break even. Under minor equipment, the expenditure was used to purchase a new projector. The one purchased in 2013 stopped working. We were also billed for our dues and subscriptions that will take effect next year. The amount of money left in travel will likely be used. She said she frequently goes to the National Association of Regional Council's Policy Conference in Washington D.C. in February. This is an important year to attend because Congress will be working on the new multi-year transportation plan. She is hoping to register for that event and take some of the expenses out of this year's budget.

Gary Schroeder moved to approve the November budget report as submitted. Greg Jones seconded, and the motion carried by voice vote.

VI. OTHER BUSINESS

None.

VII. **ADJOURNMENT**

Gary Schroeder moved to adjourn.

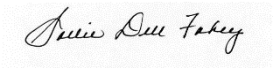
The meeting adjourned at 4:38 p.m.

Respectfully submitted,

Chyna Lynch

Recording Secretary

Reviewed by,

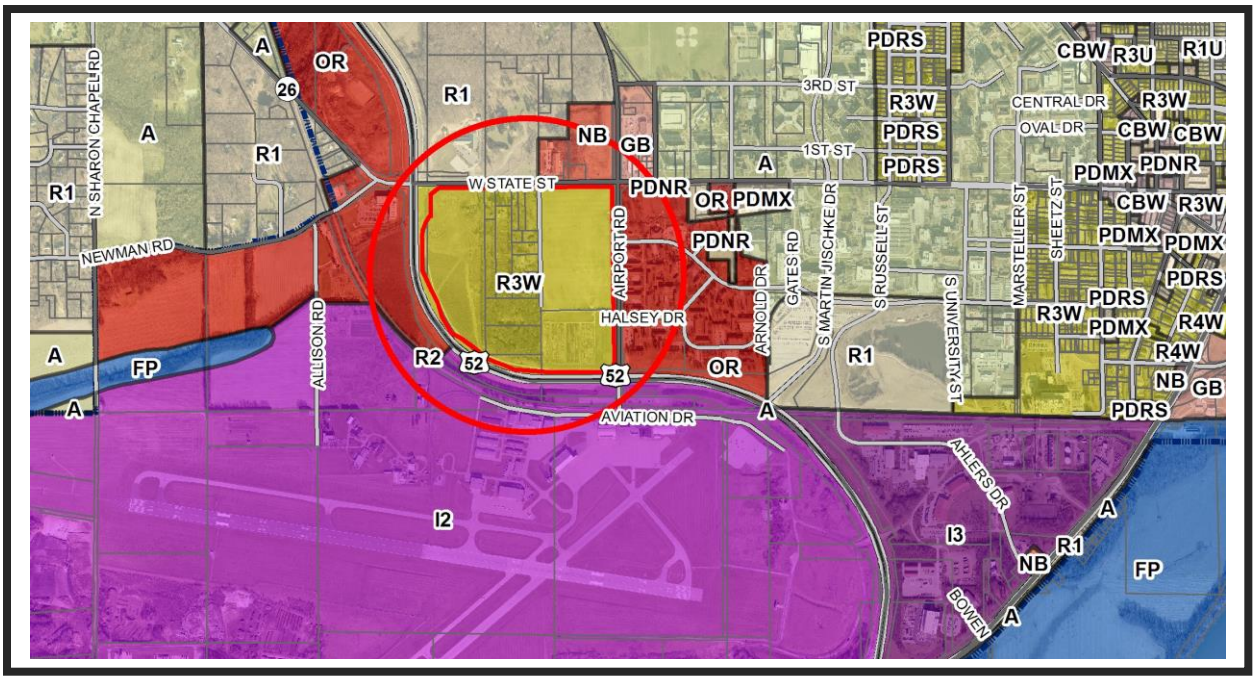


Sallie Dell Fahey

Executive Director

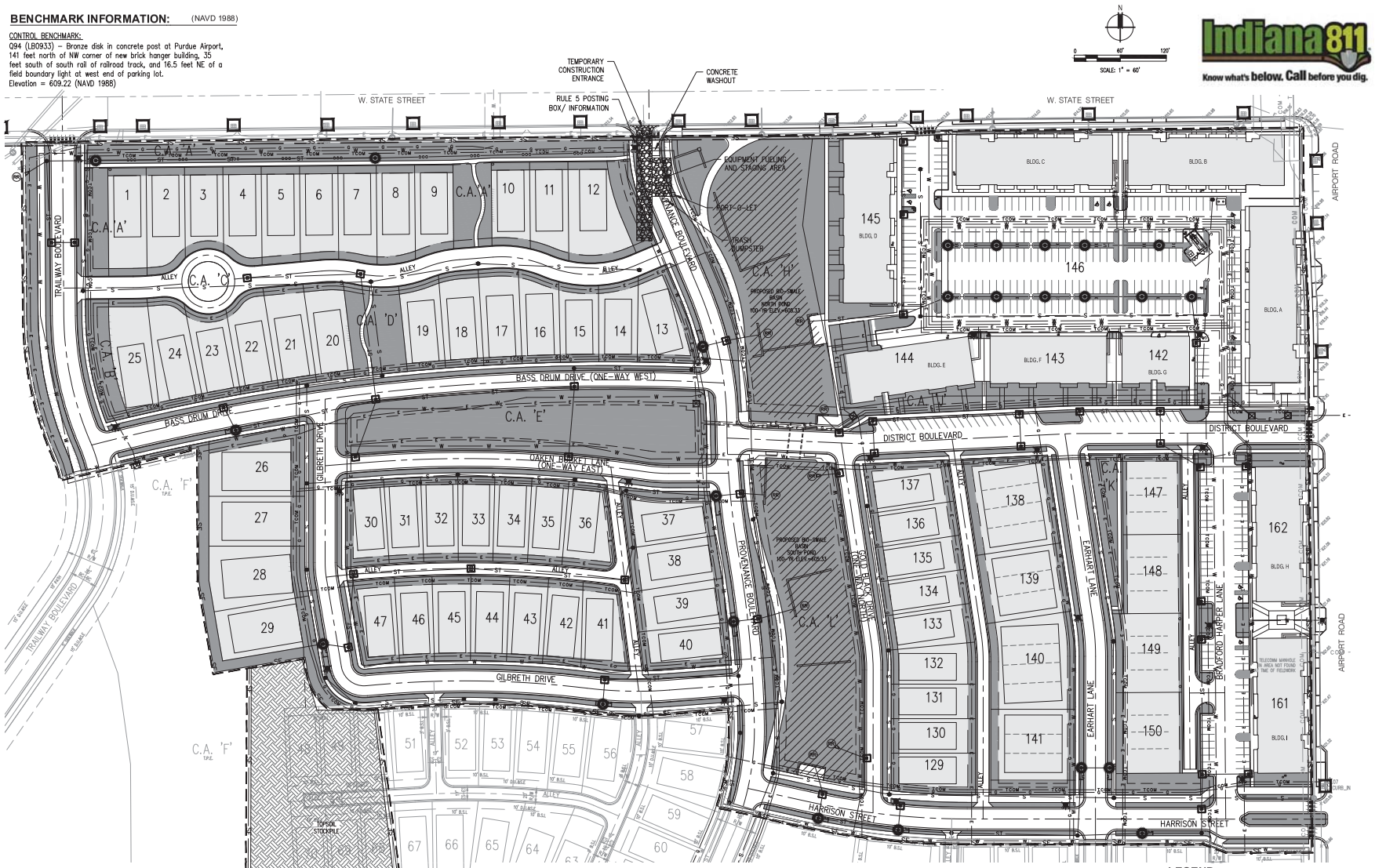
Z-2766
PURDUE RESEARCH FOUNDATION
PROVENANCE PD – PHASE 1 & 2 CONSTRUCTION PLANS
FINAL DETAILED PLANS
RESOLUTION PD-20-01

STAFF REPORT
December 23, 2019



BENCHMARK INFORMATION: (NAVD 1988)

CONTROL BENCHMARK:
Q94 (LB0933) – Bronze disk in concrete post at Purdue Airport, 141 feet north of NW corner of new brick hanger building, 35 feet south of south rail of railroad track, and 16.5 feet NE of a field boundary light at west end of parking lot.
Elevation = 609.22 (NAVD 1988)



GENERAL NOTES

1. ADDITIONAL EROSION CONTROL MEASURES MAY BE REQUIRED.
2. THERE SHALL BE NO DIRT, DEBRIS OR STORAGE OF MATERIALS IN THE STREET.
3. THIS SHEET TO BE USED FOR STORMWATER POLLUTION PREVENTION PURPOSES ONLY..
4. GEOTEXTILE FABRIC SHALL BE PLACED UNDER STONE LAYER OF CONSTRUCTION ENTRANCE.
5. ALL PORTABLE TOILETS MUST BE ANCHORED TO PREVENT SPILLS.
6. WHERE EXISTING DRAIN TILES OR FIELD TILES ARE ENCOUNTERED WHERE APPLICABLE, INTERCEPT EXISTING TILES AND TIE THEM INTO THE STORM SYSTEM.

NOTE: NO EARTH MOVING WORK SHALL COMMENCE UNTIL ITEMS 1-7 UNDER "EROSION AND SEDIMENT CONTROL SEQUENCE" ON SHEET C8.0 HAVE BEEN COMPLETED IN ADDITION TO ELEMENTS DEPICTED ON THE PLANS.

INDEX OF SWPPP ELEMENTS

SWPPP CONSTRUCTION SEQUENCE, SPECIFICATIONS AND DETAILS FOR SITE EROSION	C8.0, C8.9–C8.10
DEVELOPMENT PLAN	C1.1–C1.2

PERSON ONSITE RESPONSIBLE FOR EROSION CONTROL:
CURTIS SATTISON
OLD TOWN COMPANIES
31 1ST STREET SW
CARMEL, INDIANA
(317)947-8084
CURTIS@OLDTOWNCOMPANIES.COM

LOCATION OF PROJECT
1561 W. STATE STREET
LONGITUDE 86° 56' 00" W
LATITUDE 40° 25' 23" N

WABASH TOWNSHIP, TIPPECANOE COUNTY, INDIANA

RECEIVING WATER = TODD'S CREEK, ULTIMATELY THE WABASH RIVER

LEGEND:

- TEMPORARY SEEDING
- PERMANENT SEEDING/ SODDING OR OTHER LANDSCAPING
- DETENTION/ BIO-RETENTION PLANTINGS/ LANDSCAPING. SEE LANDSCAPE PLAN SHEETS L1.1–L3.5.
- TOPSOIL STOCKPILE AREA
- SILT FENCE
- STORMWATER DISSIPATION STONE/ FEATURE. SEE LANDSCAPE PLANS.
- TEMPORARY INLET PROTECTION

BAR IS ONE INCH ON ORIGINAL DRAWING
0 1"

REVISIONS

NO.	DATE	DESCRIPTION
1	11/26/19	REVISED PER APC/HL STAFF REVIEW COMMENTS
2	12/13/19	REVISED PER CITY DRAINAGE/ STORMWATER COMMENTS
3	12/17/19	REVISED PER CITY STAFF COMMENTS DATED 12/6/19

shrewsberry
7321 SHADELAND STATION, Indianapolis IN 46256
(p) 317.841.4700 (f) 317.841.4710
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SEAN M. DOWNEY
REGISTERED
No. 10200309
STATE OF INDIANA
PROFESSIONAL ENGINEER

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DISCOVERY PARK DISTRICT RESIDENTIAL VILLAGE PROVENANCE PHASE 1 & 2

TIPPECANOE COUNTY
WEST LAFAYETTE, IN 47906

DATE: OCT. 14, 2019
PROJECT NO.: 18-0169
DRAWN BY: RDR
CHECKED BY: SMD
DRAWING STATUS:
CONSTRUCTION DRAWINGS

SHEET TITLE:
POST-STORMWATER POLLUTION PREVENTION PLAN

SHEET NO.:
C1.4
TOTAL SHEETS: XX

FILENAME: \\nasbox\Main\Projects\Project Files\2018\18-0169\CADD\Design\Sheet Sets\18-0169 - Post-SWPP Plan.dwg PLOT DATE: 12/17/2019 10:25:08 AM, BY: Nicholson

Z-2766
PURDUE RESEARCH FOUNDATION
PROVENANCE PD - PHASE 1 & 2 CONSTRUCTION PLANS
FINAL DETAILED PLANS
RESOLUTION PD-20-01

Staff Report
December 23, 2019

BACKGROUND:
On July 17, 2019, APC, by unanimous vote, recommended approval of a reclassification from R3W to PDMX on approximately 90-acres in the City of West Lafayette for the Provenance Planned Development. The City of West Lafayette Common Council approved the rezone, by unanimous vote, on August 8, 2019. The approved preliminary plans allow for the construction of a multi-phase, multi-lot, mixed-use neighborhood development containing up to 550 residential units (including both single-family and multi-family) and up to 90,000 square feet of non-residential space, including a child care center.

The phases for the project include:

- Phase 1 = A mixed-use environment containing retail, office, daycare center, multi-family apartments, townhouses, with an option for condominium ownership.
- Phase 2 = Single-family detached homes.
- Phase 3 = Townhouses with an option for flexible ground-floor office uses.
- Phase 4 = Single-family detached homes and townhouses.
- Phase 5 = Community Center building.
- Phase 6 = Single-family detached homes and townhouses.
- Phase 7 = Senior housing, independent living and skilled-nursing facility.
- Phase 8 = Mixed-residential or civic uses such as an educational facility.

Petitioner's Final Detailed Plans, consisting of the Construction Plans for phases 1 & 2, meet all required conditions at this stage of development (with the exception of the street name application issue – described in the note below). Bonding is not being requested at this time but will at the time of Final Plat approval if required.

*Note: At the time of this report's writing, the application for street names has not been approved by the US Post Office and 911/Emergency Services. Approval of the FDPs shall be contingent on the street application being approved and any required changes to the plan's street names made. Plans cannot be recorded until this issue is settled.

STAFF RECOMMENDATION:
*****Approval of Resolution PD-20-01

RESOLUTION PD-20-01

WHEREAS Preliminary Plans for ***PROVENANCE PD - PHASE 1 & 2 CONSTRUCTION PLANS,*** are approved as part of Z-2766, with conditions attached; and

WHEREAS all conditions of approval necessary for FINAL DETAILED PLANS - PHASE 1 & 2 CONSTRUCTION PLANS have been met; and

WHEREAS UZO 2-28-12-a-2 states that minor modifications approvable by the Administrative Officer "any increase in residential density; any decrease in residential density of 10% or more; any increase in building dimension or change in building location other than within the defined building envelope; any change in landscaping other than increases, as determined appropriate by the administrative officer, in the amounts of approved landscaping, substitution of species or redesign with the same materials; any increase in the size of the signage approved with the Preliminary Plan; any change in type of land use; any change in the alignment or intersection of streets; or any change in restrictive covenants, or horizontal property ownership and owners' association documents regarding these items"; and

WHEREAS the Area Plan Commission Staff finds these Final Detailed Plans to conform to the Approved Planned Development as adopted and passed by the City of West Lafayette Common Council on August 8, 2019;

NOW THEREFORE BE IT RESOLVED that the Area Plan Commission of Tippecanoe County, after staff examination of the Final Detailed Plans submitted for ***PROVENANCE PD*** - PHASE 1 & 2 CONSTRUCTION PLANS***,*** does hereby find them to conform to the Approved Planned Development Z-2766 as adopted and passed by the City of West Lafayette Common Council.

_____ _____

TOM MURTAUGH, PRESIDENT **SALLIE DELL FAHEY, SECRETARY**

_____

DATE

THE
AREA PLAN COMMISSION
OF TIPPECANOE COUNTY

NOTICE OF PUBLIC HEARING

DATE..... JANUARY 15, 2020
TIME.....6:00 P.M.
PLACE ..... COUNTY OFFICE BUILDING
20 NORTH 3RD STREET
LAFAYETTE, IN 47901

(TENTATIVE)
A G E N D A

I. ELECTION OF OFFICERS

II. BRIEFING SESSION

III. APPROVAL OF MINUTES

IV. NEW BUSINESS

V. PUBLIC HEARING

A. COMPREHENSIVE PLAN AMENDMENTS

1. **RESOLUTION #2020-01 WEST LAFAYETTE DOWNTOWN PLAN:**
The West Lafayette Downtown Plan generally includes the area south of the north property line of the Launch Apartments, west of the Wabash River, north of the KB & S railroad tracks, and east of Grant Street in the City of West Lafayette.

B. SUBDIVISIONS

1. **S-4883 WESTBAKER INDUSTRIAL SUBDIVISION (major-preliminary):**
Petitioner is seeking primary approval for a 5-lot industrial subdivision (plus one outlot) on 23.2 acres, located on the east side of Wabash Avenue / South Beck Lane, at the Old Romney Road intersection, in Lafayette, Fairfield 31 (NE) 23-4. *CONTINUED FROM THE DECEMBER APC MEETING BECAUSE THE LAFAYETTE LEADER FAILED TO PUBLISH LEGAL ADS.*

2. **S-4889 TIMBERBROOK MEADOWS SUBDIVISION, PHASE 1 (major-preliminary):**
Petitioner is seeking primary approval for a 165-lot single-family subdivision (plus one outlot) on 60.09 acres, located on the south side of CR 600 N and the east side of CR 150 W, in Wabash 25 (NE) 24-5.

In accordance with the requirements of Title II of the Americans with Disabilities Act of 1990 (“ADA”), the Area Plan Commission of Tippecanoe County will not discriminate against qualified individuals with disabilities on the basis of disability in its services, programs, or activities. For more information visit www.tippecanoe.in.gov/ada

3. **S-4890 BARRINGTON LAKES SUBDIVISION REVISED (major-preliminary):**
Petitioner is seeking primary approval to revise 29 lots and 2 outlots in two areas of the previously approved preliminary plat, totaling 17.2 acres. The subdivision is located at the northwest corner of CR 50 S and McCarty Lane, in Perry 29 (NE) 23-3.

C. REZONING ACTIVITIES

1. **Z-2776 TAMMY APPELBAUM (GB to AW):**
Petitioner is requesting rezoning of 0.721 acres located at 9036 Mill Street in the unincorporated town of Stockwell, Lauramie 9 (NW) 21-3. *CONTINUED AT PETITIONER'S REQUEST FROM THE NOVEMBER 20, 2019 APC MEETING. LAST CONTINUANCE.*

2. **Z-2779 INDIANA BETA OF SIGMA ALPHA EPSILON HOUSE CORP. (R1 to R1U):**
Petitioner is requesting rezoning of three single-family houses located at 424, 426 & 430 Littleton Street, (all of them adjacent to the west from the fraternity on the northwest corner of Quincy Street and North River Road) West Lafayette, Wabash 20 (NW) 23-4. *CONTINUED FROM THE DECEMBER APC MEETING BECAUSE THE LAFAYETTE LEADER FAILED TO PUBLISH LEGAL ADS.*

3. **Z-2780 IRON MEN PROPERTIES OF LAFAYETTE I, LLC – Joseph Blake (Anvil 38 PD)(GB to PDRS):**
Petitioner is requesting rezoning for a two-phase, multi-family development totaling two, four-story apartment buildings containing a total of 307 units with up to 411 bedrooms and 218 surface parking spaces. Additional parking is being provided offsite by Ivy Tech (up to 112 spaces) via a parking agreement. The property is located on the south side of SR 38 E just west of its intersection with Haggarty Lane in Lafayette, Wea 2 (NE) 22-4.

4. **Z-2781 VALLEY OAKS HEALTH, INC. (NB to MR):**
Petitioner is requesting rezoning of a lot located on the southwest corner of the T-intersection of Teal and S. 22nd Street, specifically 2111 Teal Road, Lafayette, Fairfield 33 (SE) 23-4.

VI. ADMINISTRATIVE MATTERS

VII. APPROVAL OF THE FEBRUARY EXECUTIVE COMMITTEE AGENDA

VIII. DETERMINATION OF VARIANCES -- Area Board of Zoning Appeals

IX. DIRECTOR'S REPORT

X. CITIZENS' COMMENTS AND GRIEVANCES

XI. ADJOURNMENT

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THE
AREA BOARD OF ZONING APPEALS
OF TIPPECANOE COUNTY

NOTICE OF PUBLIC HEARING

DATE.....JANUARY 22, 2020
TIME.....6:00 P.M.
PLACE..... COUNTY OFFICE BUILDING
20 N. 3RD STREET
LAFAYETTE, IN 47901

A G E N D A

I. ELECTION OF OFFICERS

II. APPROVAL OF MINUTES

III. NEW BUSINESS

IV. PUBLIC HEARING

1. **BZA-2027 SCOTT JONES:**
Petitioner is requesting a special exception to use an existing single-family house as a Transient Guest House (as defined in the ordinance). The proposed hours of operation are 24 hours a day, seven days per week. The R2-zoned property is located at 107 Digby Drive, Lafayette, Fairfield 28 (NW) 23-4. (UZO 3-2) *Continued from the December meeting to publish the legal advertisement.* **WITH CONDITION.**

2. **BZA-2029 MARK SHISLER:**
Petitioner is requesting a special exception to use an existing single-family house as a Transient Guest House (as defined in the ordinance). The proposed hours of operation are 24 hours a day, seven days per week. The R2U-zoned property is located at 607 S. 24th Street, Lafayette, Fairfield 28 (NE) 23-4.(UZO 3-2)

3. **BZA-2030 VITA INVESTMENT HOLDINGS, LLC:**
Petitioner is requesting the following variances to construct a senior living facility, offering both assisted and independent living options, with 177 units (a mix of studio, one and two bedrooms) in 7 buildings on an R3W-zoned land:

   1. To increase the building height to 32.5' at the finished floor of the upper story from the maximum allowed 14'; and (UZO 2-10-11)
   2. To reduce the off-street parking to 136 from the minimum requirement of 181 spaces for university-proximate residences; (UZO 4-6-3)

   on the property located north of Cumberland Avenue, just west of US 231, in West Lafayette, Wabash 11 (NW) 23-5.

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V. ADMINISTRATIVE MATTERS

VI. ADJOURNMENT